

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Conor O'Shea	Team: Squad #06	CCRB Case #: 201808958	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/25/2018 3:58 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 12/10/2020	Precinct: 61		
Date/Time CV Reported Mon, 10/29/2018 12:22 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/29/2018 12:22 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Matthew Monkowski	04545	930757	NARCBBS
2. SGT Michael Scally	03721	948132	NARCBBS
3. DT3 Paul Mallilo	2575	949246	NARCBBS
4. DT3 Ricardo Joseph	5406	938736	NARCBBS
5. DT3 Dean Adams	3742	937942	NARCBBS
6. DT3 Steven Fursa	1245	949457	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS UC #111		000000	NARCBBS
2. POM UC #392		000000	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Matthew Monkowski	Abuse: Sergeant Matthew Monkowski stopped § 87(2)(b)	A . Substantiated
B . SGT Michael Scally	Abuse: Sergeant Michael Scally stopped § 87(2)(b)	B . Substantiated
C . DT3 Paul Mallilo	Abuse: Detective Paul Mallilo stopped § 87(2)(b)	C . Substantiated
D . DT3 Paul Mallilo	Abuse: Detective Paul Mallilo frisked § 87(2)(b)	D . Substantiated
E . DT3 Paul Mallilo	Abuse: Detective Paul Mallilo searched § 87(2)(b)	E . Substantiated
F . SGT Michael Scally	Abuse: Sergeant Michael Scally threatened to arrest § 87(2)(b)	F . Substantiated
G . SGT Michael Scally	Abuse: Sergeant Michael Scally searched § 87(2)(b) s recording device.	G . Unsubstantiated
H . SGT Michael Scally	Abuse: Sergeant Michael Scally interfered with § 87(2)(b) s use of a recording device.	H . Unsubstantiated
I . SGT Matthew Monkowski	Abuse: Sergeant Matthew Monkowski failed to provide § 87(2)(b) with a business card.	I . Exonerated
J . SGT Michael Scally	Abuse: Sergeant Michael Scally failed to provide § 87(2)(b) with a business card.	J . Exonerated
K . DT3 Paul Mallilo	Abuse: Detective Paul Mallilo failed to provide § 87(2)(b) with a business card.	K . Exonerated
L . DT3 Ricardo Joseph	Abuse: Detective Ricardo Joseph failed to provide § 87(2)(b) with a business card.	L . Exonerated

Officer(s)	Allegation	Investigator Recommendation
M . DT3 Dean Adams	Abuse: Detective Dean Adams failed to provide § 87(2)(b) with a business card.	M . Exonerated
N . DT3 Steven Fursa	Abuse: Detective Steven Fursa failed to provide § 87(2)(b) with a business card.	N . Exonerated
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On October 29, 2018, § 87(2)(b) called the CCRB and filed this complaint.

On October 25, 2018, at approximately 3:58 p.m., § 87(2)(b) was talking on the phone in front of his garage, located at § 87(2)(b) § 87(2)(b) in Brooklyn, when Sergeant Matthew Monkowski, Sergeant Michael Scally, and Detective Paul Mallilo—all of Narcotics Borough Brooklyn South—who were in the area to conduct a buy-and-bust operation, pulled up behind him in an unmarked minivan, and stopped and handcuffed him (**Allegations A, B, and C: Abuse of Authority, substantiated**). Sgt. Scally took possession of one of § 87(2)(b)'s cell phones. Det. Mallilo frisked § 87(2)(b) and searched his front sweatshirt pocket and pants pocket repeatedly (**Allegations D: Abuse of Authority, substantiated; Allegation E: Abuse of Authority, substantiated**). Det. Mallilo recovered a folding pocket knife from § 87(2)(b)'s right front pants pocket. Sgt. Scally threatened to arrest § 87(2)(b) for possession of the knife (**Allegation F: Abuse of Authority, substantiated**). Detective Ricardo Joseph, Detective Dean Adams, and Detective Steven Fursa—all of Narcotics Borough Brooklyn South, as well—arrived in a second unmarked vehicle a few minutes later. After it was determined that § 87(2)(b) was the incorrect suspect, Sgt. Scally returned § 87(2)(b)'s knife and cell phone, which Sgt. Scally had allegedly turned off (**Allegation G: Abuse of Authority, unsubstantiated; Allegation H: Abuse of Authority, unsubstantiated**). § 87(2)(b) was neither arrested nor issued any summonses, and did not receive any business cards from any officer (**Allegations I–N: Abuse of Authority, exonerated**). § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Three angles of surveillance footage from outside of § 87(2)(b)'s garage captured the incident in its entirety. § 87(2)(b) also recorded a brief video on his cell phone at the end. The three angles of surveillance footage and their corresponding summaries can be found in IAs #73 (**Board Review 01**) and #230 (**Board Review 02**); #74 (**Board Review 03**) and #231 (**Board Review 04**); and #75 (**Board Review 05**) and #232 (**Board Review 06**). § 87(2)(b)'s cell phone footage and its summary can be found in IAs #19 (**Board Review 07**) and #25, respectively.

Findings and Recommendations

Allegation A—Abuse of Authority: Sergeant Michael Monkowski stopped § 87(2)(b)

Allegation B—Abuse of Authority: Sergeant Michael Scally stopped § 87(2)(b)

Allegation C—Abuse of Authority: Detective Paul Mallilo stopped § 87(2)(b)

§ 87(2)(g)

The synthesized narrative from the surveillance footage (**Board Review 01, 03, 05**) is as follows. See the surveillance footage video summaries (**Board Review 02, 04, 06**) for detailed time stamp descriptions and a play-by-play from each camera angle. On October 25, 2018, at approximately 3:57 p.m., § 87(2)(b) crossed § 87(2)(b) Brooklyn and walked toward his garage, located at § 87(2)(b) § 87(2)(b). § 87(2)(b) was talking on the phone and carrying a plastic shopping bag. He wore a gray hooded sweatshirt with the hood up as well as black pants. § 87(2)(b) crossed § 87(2)(b) and walked shortly down § 87(2)(b) before walking onto the sidewalk, where he remained for a few minutes while talking on the phone. During this time, several other males wearing hooded jackets of some sort were walking nearby on § 87(2)(b) and crossing § 87(2)(b). The area was busy with vehicular and pedestrian traffic. Approximately

one minute after § 87(2)(b) stopped near his garage, the field team's assist vehicle drove past his location and stopped briefly near him before driving around the block. A few minutes later, the field team's leader car pulled up behind § 87(2)(b) at which point Det. Mallilo, Sgt. Monkowski, and Sgt. Scally stopped and handcuffed him. Det. Joseph, Det. Adams, and Det. Fursa arrived, but Sgt. Monkowski and Det. Fursa drove away in the leader car shortly thereafter, while the other officers remained on scene with § 87(2)(b). Several minutes later, § 87(2)(b) was un-handcuffed and released as the remaining officers drove away in the assist vehicle.

On October 25, 2018, at approximately 3:58 p.m., Narcotics Borough Brooklyn South's Tactical Response Team (TRT or 'field team') was conducting narcotics enforcement operations (**Board Review 08**) in the vicinity of the § 87(2)(b) in Brooklyn, a NYCHA complex covering several city blocks, approximately two blocks away from § 87(2)(b)'s garage. § 87(2)(e)

§ 87(2)(e); Team Leader Sgt. Monkowski, who rode in the unmarked minivan leader car with Det. Mallilo and Sgt. Scally; and Det. Joseph, Det. Adams, and Det. Fursa in the assist vehicle. Shortly before 4:00 p.m., § 87(2)(e) engaged in a buy with § 87(2)(b) in the courtyard of § 87(2)(b) Brooklyn. § 87(2)(e) purchased \$30-worth of alleged crack cocaine from § 87(2)(b). § 87(2)(e) provided a physical description of the seller and the seller's location to Sgt. Monkowski, which he relayed to the rest of the field team. The description at least included that the seller was a male wearing a hooded sweatshirt within a few-block radius of the § 87(2)(b). The only reason why § 87(2)(b) was stopped was because the members of the field team believed that he fit this description.

The field team later learned that § 87(2)(b) was not the seller. Within a half-hour, by approximately 4:30 p.m., the field team apprehended the correct suspect, § 87(2)(b) near the § 87(2)(b). § 87(2)(b) was arrested (**Board Review 09**) and transported back to the local stationhouse for processing. § 87(2)(b) was not arrested or issued any summonses.

Based on all of the available evidence—including testimony from § 87(2)(b) and all of the officers, § 87(2)(e) (**Board Review 10**) and § 87(2)(b) arrest report prepared by Det. Mallilo (**Board Review 09**), in addition to § 87(2)(b)'s surveillance footage (**Board Review 01, 03, 05**), § 87(2)(b)'s cell phone footage (**Board Review 07**) and still images from that footage (**Board Review 11, 12**), and a photograph taken of § 87(2)(b) at his CCRB interview (**Board Review 13**)—the investigation determined the following. No photograph of § 87(2)(b) was available (**Board Review 14**). At the time of the incident:

- § 87(2)(b) was a § 87(2)(b), dark-skinned black male, standing 5'9" tall and weighing 140 pounds, with short black hair. He was wearing a blue denim jacket over a black hooded sweatshirt, blue jeans, blue-and-white Nike sneakers, and was inside the § 87(2)(b) complex.
- § 87(2)(b) was a § 87(2)(b) light-skinned Hispanic male, standing 6'0" tall and weighing 200 pounds, and was bald. He was wearing a gray hooded sweatshirt, black pants, brown leather shoes, and was talking on the phone with his hood up while holding a plastic bag outside of his garage, located at § 87(2)(b), which is approximately a few blocks away from the § 87(2)(b).

§ 87(2)(g), § 87(2)(f), § 87(2)(e)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(g)

§ 87(2)(e), § 87(2)(f)

Team Leader Sgt. Monkowski testified (**Board Review 20**) that he received a description of the seller's appearance and location from § 87(2)(e) after the buy occurred. He remembered that § 87(2)(e) described the seller as a male wearing either a blue or gray hooded sweatshirt. § 87(2)(e)

§ 87(2)(e) description omitted the suspect's race. The location of the buy provided by § 87(2)(e) was "almost exactly" where § 87(2)(b) was ultimately stopped: § 87(2)(b). There may have been additional information in the description from § 87(2)(e) but Sgt. Monkowski did not remember it at his interview. The leader car stopped § 87(2)(b) approximately "a few minutes" after receiving the description from § 87(2)(e). § 87(2)(b) was wearing "either a light blue or gray hoodie." There was nothing else about § 87(2)(b)'s appearance that matched § 87(2)(e) description, as far as Sgt. Monkowski could remember. § 87(2)(b) was "the only person that—in the vicinity that seemed to fit it § 87(2)(b) description] initially." § 87(2)(b) had his back turned to the leader car upon their approach.

§ 87(2)(a) 160.50

Det. Mallilo testified (**Board Review 22**) that he did not remember how § 87(2)(e) provided the description, or whether he heard it firsthand or through Sgt. Monkowski. Det. Mallilo did not remember the description § 87(2)(e) provided, but did remember that the seller was at least described as a male, and may have also been described as wearing a blue hoodie and blue jeans. § 87(2)(e)

§ 87(2)(e) reported the seller's location as the intersection of § 87(2)(b) and § 87(2)(b). Upon receiving this description, the leader car drove to that location, and Det. Mallilo first observed § 87(2)(b) there. Det. Mallilo believed that § 87(2)(b) "matched the description" provided by § 87(2)(e), as he was the only male at that location that Det. Mallilo felt fit the description. § 87(2)(b) was wearing the "same description that was given to us from § 87(2)(e). Det. Mallilo identified himself as a police officer upon approach.

Sgt. Scally's statements § 87(2)(g) that the description of the seller that § 87(2)(e) provided was of a male who was wearing jeans and a gray hoodie with the hood up, talking on the phone in the vicinity of § 87(2)(b), which is very close to the § 87(2)(b). Initially, he testified that there was no additional information included in the description, but later said race may have been included. He denied that § 87(2)(e) included any reference to the suspect's real or apparent age. After receiving the description, the leader car canvassed for approximately five minutes before observing and stopping § 87(2)(b) because he fit the description of being a male wearing jeans and a gray hoodie with the hood up while talking on the phone, in the vicinity of § 87(2)(b). § 87(2)(b) was "calm" as Sgt. Scally, Sgt. Monkowski, and Det. Mallilo approached him.

§ 87(2)(g)

Still, Det. Adams testified that § 87(2)(b) "looked exactly like" the description of the seller. None of the detectives in the assist vehicle

remembered the seller's described location. Det. Joseph, however, testified that it was "somewhere around [REDACTED] § 87(2)(b) which was "not that far" from where [REDACTED] § 87(2)(b) was ultimately stopped.

"Whenever an individual is physically or constructively detained by virtue of a significant interruption of his liberty of movement as a result of police action, that individual has been seized within the meaning of the Fourth Amendment." People v. Cantor, 36 N.Y.2d 106 (1975), internal citations omitted (**Board Review 27**). A police officer can stop a potential suspect in a buy-and-bust operation based solely on an undercover officer's description of the suspected seller only if the person being stopped "reasonably fit[s]" that description. People v. Castro, 206 A.D.2d 333 (1st Dept. 1994) (**Board Review 28**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[REDACTED] It is therefore recommended that **Allegations A, B, and C** be closed as *substantiated*.

Allegation D—Abuse of Authority: Detective Paul Mallilo frisked § 87(2)(b)

Allegation E—Abuse of Authority: Detective Paul Mallilo searched § 87(2)(b)

§ 87(2)(g)

The synthesized narrative from the surveillance footage (**Board Review 03, 05**) is as follows. See the surveillance footage video summaries (**Board Review 04, 06**) for detailed time stamp descriptions from each angle. As soon as Det. Mallilo approaches § 87(2)(b) he wraps his arms around § 87(2)(b)'s stomach. Det. Mallilo then puts both his right and left hands inside of § 87(2)(b)'s front sweatshirt pocket for a few seconds and removes some objects. Det. Mallilo then lifts up the front of § 87(2)(b)'s sweatshirt with his right hand and puts fingers from his left hand immediately inside of § 87(2)(b)'s right front pants pocket. Det. Mallilo does not appear to pat down the outside of the pocket before entering it with his fingers. Det. Mallilo then appears to squeeze an object inside of § 87(2)(b)'s right front pants pocket before fully entering the pocket with his entire left hand and removing an object, identified by the investigation as a knife. Det. Mallilo then repeatedly enters and re-enters § 87(2)(b)'s right front pants pocket and rummages around inside—even after removing the object he had squeezed in the pocket in the first place.

§ 87(2)(e)

§ 87(2)(b)

§ 87(2)(b) Prior to § 87(2)(b) being stopped, no officer observed any bulges on his person. § 87(2)(b) did have a small, folding pocket knife clipped to the inside of his right front pants pocket, but his sweatshirt obscured it from view. No officer observed any knives clipped upon approach.

Det. Mallilo testified (**Board Review 22**) that he did not suspect § 87(2)(b) specifically, of being armed, and did not suspect § 87(2)(b) of committing any offenses besides allegedly selling narcotics to § 87(2)(e). Det. Mallilo stated that “it is typical that drug dealers carry weapons on them, be it knives or firearms,” but acknowledged that he did not have any specific, individualized reason to believe that § 87(2)(b) himself was armed. Det. Mallilo frisked § 87(2)(b) by patting down his pants, and had no other reason for frisking § 87(2)(b) besides thinking that § 87(2)(b) was a drug dealer, and thinking that drug dealers are usually armed.

During the frisk, Det. Mallilo felt a “hard object” in a “long oval shape with ridges,” which he believed was “the shape of a pocket knife,” in § 87(2)(b)'s right front pants pocket. Det. Mallilo asked § 87(2)(b) about it, and § 87(2)(b) said it was a pocket knife. Det. Mallilo entered that pocket to retrieve the knife and did recover one. The knife was “just a foldable” knife and lawful to possess. Det. Mallilo did not remember if he frisked or entered any other pockets. Det. Mallilo was shown a portion of the surveillance video (**Board Review 05**) that depicts him entering § 87(2)(b)'s front sweatshirt pocket before frisking § 87(2)(b)'s right front pants pocket or recovering the knife. Det. Mallilo acknowledged that he did so but lacked an independent recollection of doing it. Det. Mallilo had no specific reason to believe that the front sweatshirt pocket contained a weapon, besides his belief that all drug dealers are often armed.

During his CCRB interview (**Board Review 22**), Det. Mallilo was also shown the portions of the surveillance footage (**Board Review 05**) that depict him repeatedly entering § 87(2)(b)'s right front pants pocket, even after he removes the object from it. Det. Mallilo stated that he continued to enter the pocket “to see if there’s [sic] any weapons.” Det. Mallilo was asked if, after removing the object from the pocket, he continued to believe that there were still more weapons therein. In response, Det. Mallilo said, “It’s possible,” but he did not remember feeling anything to suggest that that was the case.

Generally, an officer may frisk a civilian only if the officer possesses a particularized, reasonable suspicion that the suspect “is armed and may be dangerous.” People v. Russ, 61 N.Y.2d 693 (1984) (**Board Review 29**). Lawful frisks require that “[t]he police officer...articulate specific inferences, drawn from the particular facts, which, in light of his experience, would cause a reasonably prudent man in such circumstances to harbor a rational belief in danger.” People v. Watson, 96 A.D.2d 1066 (2nd Dept. 1983) (**Board Review 30**). Absent a specific, articulated fear that a suspect is armed and dangerous, however, an officer may still frisk a suspect—but only if he has reasonable suspicion that the suspect “has committed, is committing or is about to commit *such a serious and violent crime as robbery or...burglary*.” People v. Mack, 26 N.Y.2d 311 (1970), emphasis added (**Board Review 31**).

Under People v. DeBour, 40 N.Y.2d 210 (1976) (**Board Review 32**), when an officer’s level of suspicion rises above DeBour’s Level 3 (reasonable suspicion) to DeBour’s Level 4 (probable cause), the officer may arrest the suspect and conduct a ‘search incident to a lawful arrest’ (SILA). DeBour, supra. A warrantless search is considered to be justified as a SILA only if it is “incident to an *actual* arrest, not just probable cause that might have led to an arrest, but did not.” People v. Reid, 24 N.Y.3d 615 (2014), emphasis added (**Board Review 33**).

§ 87(2)(e), § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as *substantiated*.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *substantiated*.

Allegation F—Abuse of Authority: Sergeant Michael Scally threatened to arrest § 87(2)(b)

§ 87(2)(b) provided photos of his pocket knife in open and closed positions next to a \$5 bill for reference. He identified it as the “Endura” model (**Board Review 35–38**). The

photographs depict the knife to be a “Spyderco” brand folding knife with a lock-back mechanism. Searches of the Spyderco website revealed that § 87(2)(b) correctly identified his knife as an Endura, § 87(2)(g)

Although § 87(2)(b) did not allege that any officer threatened to arrest him for possessing the pocket knife, Sgt. Scally acknowledged doing so in his CCRB interview (**Board Review 23**). Specifically, Sgt. Scally testified that Det. Mallilo recovered what Sgt. Scally believed to be a “gravity knife” after frisking § 87(2)(b) and handed it to Sgt. Scally. Sgt. Scally did not remember if he conducted the ‘wrist-flick’ test on the knife to determine if it actually was a gravity knife, but he was confident based on his observations of the closed knife alone that it was, in fact, a gravity knife, given his training and experience. Sgt. Scally believes that gravity knives “usually...all look the same.” Sgt. Scally returned the knife to § 87(2)(b) warned and admonished him about its illegality, and said § 87(2)(b) could be arrested for having it in public.

Det. Mallilo testified (**Board Review 22**) that § 87(2)(b)'s knife was not a gravity knife but rather “just a foldable” knife, and thus lawful to possess.

In order to make a lawful, warrantless arrest, an NYPD officer must possess “reasonable cause to believe” that an offense was committed in his presence. NYPD Patrol Guide Procedure 208-01 (**Board Review 39**). At the time of this incident, it was a crime in New York State to possess “any...gravity knife,” defined as “any knife which has a blade which is released from the handle or sheath thereof by the force of gravity or the application of centrifugal force which, when released, is locked in place by means of a button, spring, lever or other device.” NY Penal Law §§ 265.01 and 265.00(5) (**Board Review 40–41**) (collectively, the ‘gravity knife statutes’). This gravity knife prohibition was struck down in federal court as unconstitutionally vague in March 2019, Cracco, *infra*, and repealed by the New York State Assembly effective on May 30, 2019 (**Board Review 42**), but was still in effect at the time of this incident.

Possession of some brands of folding, lock-back utility knives—those which are widely used for non-criminal purposes and marketed as legitimate handyman’s tools—are not illegal under the gravity knife statutes. United States v. Irizarry, 509 F.Supp.2d 198 (E.D.N.Y. 2007) (**Board Review 43**). These types of folding, lock-back utility knives are “common tool[s]” analogous to the carpenter’s hammer, so possessing one “is not a suspicious act” that, by itself, could give rise to “reasonable suspicion of criminal activity” to justify a stop—let alone probable cause to arrest. Irizarry, *supra*. Even if an officer subjectively believes that a folding, lock-back utility knife that is commonly carried for legitimate purposes is illegal under the gravity knife statutes, the Irizarry court held that such a belief is unreasonable “given the instrument’s wide and routine distribution for lawful purposes.”

As briefly mentioned above, in March 2019, the gravity knife statutes were struck down in federal court as unconstitutionally vague as-applied to the appellant in that case, who was arrested for possessing a Spyderco Endura—the same brand and general model of knife that § 87(2)(b) had on his person during this incident. Cracco v. Vance, 2019 U.S. Dist. LEXIS 52292 (2019) (**Board Review 44**). The Cracco court described the Spyderco Endura by highlighting the same aspects of its design and common use that it shares with the knife at issue in Irizarry, which was held not to be a gravity knife. Specifically, like the knife in Irizarry, the Spyderco Endura is “commonly used by cooks, craftsmen, and laborers to perform their job functions,” leading the Cracco court to conclude that the gravity knife statute was not “intended to criminalize the possession” of an “ordinary folding knife,” like the Spyderco Endura. Cracco, *supra*.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as *substantiated*.

Allegation G—Abuse of Authority: Sergeant Michael Scally searched § 87(2)(b)'s recording device.

Allegation H—Abuse of Authority: Sergeant Michael Scally interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(g)

The surveillance footage depicts the following, with time stamps referring to the video player:

- At 3:59:10 p.m.—which begins at the 02:11 time stamp for the video in IA #73 (**Board Review 01**) and the 01:50 time stamp for the video in IA #75 (**Board Review 05**)—Sgt. Scally appears to remove a cell phone from § 87(2)(b)'s left hand as he handcuffs him.
- At 4:00:00 p.m.—beginning at the 02:40 time stamp for the video in IA #75 (**Board Review 05**)—Det. Mallilo escorts § 87(2)(b) toward the leader car. Sgt. Scally appears to be holding a black rectangular object consistent with a cell phone.
- At 4:01:22 p.m.—beginning at the 4:22 time stamp for the video in IA #73 (**Board Review 01**)—Sgt. Scally appears to place a rectangular object on the hood of the assist vehicle, while § 87(2)(b) remains handcuffed.
- At 4:02:11 p.m.—beginning at the 5:11 time stamp for the video in IA #73 (**Board Review 01**)—Sgt. Scally appears to pick up the rectangular object that he had placed on the hood and hand it back to § 87(2)(b) shortly thereafter.

§ 87(2)(b) consistently (**Board Review 45, 46**) alleged that was talking on his personal cell phone with his work cell phone clipped to a holster on his belt when he was first stopped. At the outset of the stop, an officer—identified by the investigation on video as Sgt. Scally—took the personal cell phone out of § 87(2)(b)'s hand while handcuffing him. As the stop concluded, § 87(2)(b)'s personal cell phone was returned to him, but it had been turned off. § 87(2)(b) was therefore forced to use his work cell phone to record a brief video and take a photograph.

Sgt. Monkowski did not know if any officer took possession of § 87(2)(b)'s cell phone, turned it off, or pushed any buttons on it. Det. Mallilo, Det. Joseph, and Sgt. Scally did not remember if any officer did so. Det. Fursa and Det. Adams denied that any officer did so.

§ 87(2)(g)

But the surveillance footage does not offer sufficient clarity to track the movements of Sgt. Scally's fingers, and there are moments when the phone is obscured by passersby or street poles. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations G and H** be closed as *unsubstantiated*.

§ 87(2)(g), § 87(4-b)

[Redacted text block]

[Redacted text block]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three other CCRB complaints and has been listed as a victim in eight allegations (**Board Review 56**).

- § 87(2)(b)
- [Redacted text]
- [Redacted text]

- Sgt. Monkowski has been a member-of-service for 16 years and has been a subject in seven other CCRB complaints and 11 other allegations, one of which was substantiated.
 - CCRB case #201407006 involved one substantiated allegation of refusal to obtain medical treatment. The Board recommended, and the NYPD imposed, Command Discipline-A. § 87(2)(g)
- Det. Mallilo has been a member-of-service for eight years and has been a subject in six other CCRB complaints and nine other allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Scally has been a member-of-service for 10 years and has been a subject in eight other CCRB complaints and 15 other allegations, none of which were substantiated. § 87(2)(g)
- Det. Joseph has been a member-of-service for 13 years and has been a subject in two other CCRB complaints and two other allegations, none of which were substantiated. § 87(2)(g)
- Det. Adams has been a member-of-service for 13 years and has been a subject in four other CCRB complaints and seven other allegations, none of which were substantiated. § 87(2)(g)
- Det. Fursa has been a member-of-service for eight years and has been a subject in three other CCRB complaints and four other allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A FOIL request was submitted to the New York City Office of the Comptroller on June 17, 2019, regarding any Notices of Claim filed by § 87(2)(b) regarding this incident. That request is still pending as of the writing of this report (**Board Review 57**).
- [§ 87(2)(b)] [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature _____ Print Title & Name _____ Date _____